

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

April 28, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor and Mr. Valdez. ABSENT: Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Shanor moved to approve Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 14, 2014. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to provide for an Alternative Compliance for reduced residential minimum front setback. Brandon Cammarata, Director of Planning and Development, provided information on setback distances for single family homes and duplexes, from 25 ft. to 15 ft. when certain criteria is met and particularly for infill developments in existing neighborhoods, pursuant to inquiry that had been raised at the Public Services Committee meeting. Reporting for Public Services Committee, Mr. Shanor moved to approve on second reading, seconded by Dr. Rinne. Upon inquiry, Mr. Cammarata clarified garages will still need to meet setback criteria. Motion carried. Voting "yes"-- all members of the governing body present.

RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Lois Huff, City Treasurer, requested consideration of a two week postponement to allow time to evaluate other potential funding sources (relative to funding needed for firefighter wages as the result of arbitration last year) pursuant to discussion held at the Finance Committee meeting. Reporting for Finance Committee, Mr. Allen advised there was no recommendation on the item from the Committee. Mr. Allen moved to adopt, seconded by Dr. Rinne. Mr. Allen moved to postpone to May 12, 2014, seconded by Dr. Rinne. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

[CA] RESOLUTION - Approving the City of Cheyenne's 2014-2015 Annual Action Plan

prepared by the Cheyenne Housing and Community Development Office. Motion (per Consent Agenda) carried. (#5582)

[CA] RESOLUTION - Authorizing the Mayor to enter into an “As Is” Collective Labor Agreement with I.A.F.F. Union Local #279 for Fiscal Year 2015. Motion (per Consent Agenda) carried. (#5583)

RESOLUTION - Rescinding Resolution No. 3451 and establishing a new schedule of fees, charges and expenses as required by Section 1.3.7. of the Cheyenne Unified Development Code. Matt Ashby, Director of Planning Services, provided a brief overview of the purpose of the resolution, noting the last fee increases were 21 years ago. He discussed administrative actions and processes involving fees; cost of services; fee structures and amounts studied involving other communities; “hard” costs incurred, and Laramie County’s rate structure. Dale Steenberg, President, Greater Cheyenne Chamber of Commerce, spoke in opposition to the resolution, commenting on assumptions that were being made pertaining to community development costs; previous Cheyenne LEADS study; relationship of fees affecting local businesses and economic development, and suggested lower taxes, smaller government should be encouraged. Brad Emmons, AVI Engineering, posed questions regarding simple and complex development agreements and the difference between site plans; financial security amount, and subdivision standard waiver, and suggested increases be put in place over a 3-4 year period. Mr. Allen moved to adopt, seconded by Mr. Brown. Discussion included the following topics: Notes/clarifications that were not included with the resolution information; percentage of cost currently borne by developers vs. administrative costs expended; determining costs to do business in Cheyenne; pending results of the development impact study; competitiveness, and proposed flat fees. During discussion and upon inquiry, Mr. Ashby provided information on the flat fees proposed; County fee structure, which is based on a flat rate as well as an hourly staff time rate; “hard” costs involving such things as advertising of legal notifications; mailings, reports, etc., and recent development construction valuations. He stated the impact study will address how to handle growth issues involving City services. Mr. Brown moved to postpone to May 12, 2014, seconded by Ms. Broyles. Following comment on receiving further information on the “package” of fees and costs to developers, motion to postpone carried. Voting “yes” -- all members of the governing body present. Mayor Kaysen noted the item would be reviewed at the next Finance Committee meeting scheduled for May 5th.

[CA] RESOLUTION - Amendment to Resolution No. 5505 authorizing the Mayor and City Clerk to enter into a Settlement Agreement and Re-Development Agreement with 19<sup>th</sup> and Converse, LLC, a Colorado Limited Liability Company, to settle all remaining issues relating to the acquisition of right-of-way for the re-construction of the Converse Avenue/Pershing Boulevard/19<sup>th</sup> Street intersections, and approving, as a condition of settlement, the trade of certain real property owned by the City to 19<sup>th</sup> and Converse, LLC, described as Lots 30 and 31, Block One, Eastridge Addition, together consisting of approximately 17,361 square feet, and having an assessed value of \$81,590.00, in exchange for certain real property owned by 19<sup>th</sup> and Converse, LLC, consisting of approximately 9,504 square feet of land, being a portion of Lots 1 and 2, Ruth Addition, having an appraised value between \$190,080.00 and \$237,600.00, both properties being located at or near the Converse Avenue/Pershing Boulevard/19<sup>th</sup> Street intersections, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5584)

[CA] RESOLUTION - Authorizing the Cheyenne Police Department to apply for Wyoming Department of Transportation, Highway Safety Program, Grant funding for the City's Mobile D.U.I. Command Post (sponsor - Mr. Brown) – referred to Finance Committee.

[CA] RESOLUTION - Granting, with conditions, the petition of Lummis Livestock, LLC, for the expansion of the boundaries of the South Cheyenne Water & Sewer District to provide water and sewer services to users within Phase I of the Sweetgrass Development (sponsor - Mr. Shanor) – referred to Public Services Committee.

Preliminary Plat for the Pointe, Eighth Filing, a replat of Lot 14, Block 8, The Pointe, Fifth Filing, Cheyenne, Wyoming (located west of and adjacent to Powderhouse Road, between Dorothy Lane and Michael Evans Avenue). Mr. Shanor moved to acknowledge the Planning Commission's recommendation to approve with staff conditions #1 and 2, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

Professional Services Agreement between the City of Cheyenne, Engineering Department, and Short Elliott Hendrickson, Inc., for engineering design and construction management services for the 19th Street Rehabilitation Project (2011 - 2014 1% Sales Tax, BOPU Funds). Mr. Allen moved to approve in an amount not to exceed \$782,851.00, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#6151)

[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County Sheriff's Department and Laramie County, Wyoming, for Municipal Court security services. Motion (per Consent Agenda) carried (amount not to exceed \$42,000). (#6152)

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and Tetra Tech, Inc., for Digital Orthoimagery and Topographic Mapping (GIS Cooperative). Motion (per Consent Agenda) carried (total amount not to exceed \$171,741.00; City's share \$46,537.00). (#6153)

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No. 1 for School Resource Officers for summer school 2014. Motion (per Consent Agenda) carried. (#6154)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the City of Casper, Police Department, for law enforcement extraterritorial assistance. Motion (per Consent Agenda) carried. (#6155)

[CA] User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior "A" Hockey, LLC, to host the 2014 - 2016 seasons at the City-owned Ice and Events Center. Motion (per Consent Agenda) carried. (#6156)

[CA] Media Sales Agency Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior "A" Hockey, LLC, for Static Visual Advertising at the City-owned Ice and Events Center. Motion (per Consent Agenda) carried. (#6157)

[CA] Memorandum of Understanding between the City of Cheyenne, Parks and Recreation Department, and Empire Builders, LLC, for financial contributions to be used for future improvements to the David R. Romero South Cheyenne Community Park. Motion (per Consent Agenda) carried. (#6158)

Business Ready Community Grant and Loan Program Grant Agreement between the Wyoming Business Council and the City of Cheyenne for \$2,000,000 to construct a portion of rail infrastructure in the Swan Ranch Industrial Park. Scott Sutherland, Granite Peak Development, advised he was present to provide any information on the item as well as the next four affiliated agenda items. Mr. Allen moved to approve, seconded by Dr. Rinne. Mr. Allen moved to amend by substitute, seconded by Dr. Rinne. It was noted the proposed substitute contains corrections in the attachments to the agreement. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#6159)

Mortgage between Swan Ranch Properties, LLC, as mortgagor, and the City of Cheyenne, as mortgagee, for 80.74 acres of land located in the Swan Ranch Industrial Park, and described as the East Half of Section 28, Township 13 North, Range 67 West of the 6<sup>th</sup> PM, and the Northeast Quarter of Section 27, Township 13 North, Range 67 West of the 6<sup>th</sup> PM, Laramie County, Wyoming – referred to Finance Committee. Mr. Allen reported that due to timing involving the proposed agreement action for the Business Ready Community Grant and Loan Program Grant Agreement, the item was reviewed under other items for the agenda at the April 21, 2014 Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Allen moved to approve, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present. (#6159)

Railroad right of way easement between Swan Ranch, LLC, and Clear Creek Land Co., LLC, and the City of Cheyenne concerning the Railway Corridor Project in the Swan Ranch Industrial Park – referred to Finance Committee. Mr. Allen reported that due to timing involving the proposed agreement action for the Business Ready Community Grant and Loan Program Grant Agreement, the item was reviewed under other items for the agenda at the April 21, 2014 Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Allen moved to approve, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present. (#6159)

Granite Peak Development, LP, Assignment of Ownership of Rail, Ties and all related Rail Equipment installed pursuant to Amended and Restated Project Development and Administration Agreement, concerning the Railway Corridor Project in the Swan Ranch Industrial Park – referred to Finance Committee. Mr. Allen reported that due to timing involving the proposed agreement action for the Business Ready Community Grant and Loan Program Grant Agreement, the item was reviewed under other items for the agenda at the April 21, 2014 Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Allen moved to approve, seconded by Dr. Rinne. Motion carried. Voting “yes” -- all members of the governing body present. (#6159)

Non-Negotiable Promissory Note for Granite Peak Development, Limited Partnership, to pay the City of Cheyenne the sum of three million dollars (\$3,000,000.00), concerning the Railway Corridor Project in the Swan Ranch Industrial Park – referred to Finance Committee. Mr. Allen

reported that due to timing involving the proposed agreement action for the Business Ready Community Grant and Loan Program Grant Agreement, the item was reviewed under other items for the agenda at the April 21, 2014 Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Allen moved to approve, seconded by Ms. Broyles. Upon inquiry, Scott Sutherland, Granite Peak Development, provided an update of the number of companies and affiliated jobs that have been created in the Industrial Park, noting that currently they are literally out of land to provide rail services to additional interested companies/customers. Upon inquiry, Dan White, City Attorney, explained the 1% interest rate, based upon the rate assessed by the Wyoming Business Council, and portion (½ of 1%) that will come back as economic development funds. Motion carried. Voting “yes” -- all members of the governing body present. (#6159)

[CA] Memorandum of Understanding between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District No. 1 to provide transportation services for the City’s Summer Recreation Camp Program – referred to Finance Committee.

[CA] Memorandum of Understanding between Laramie County, City of Cheyenne, Cheyenne Board of Public Utilities, Cheyenne/Laramie County Board of Health and Cheyenne Regional Airport Board regarding the management of the Environmental Systems Research Institute (ESRI) Enterprise License for the Cooperative Geographic Information Systems (GIS) program, and authorizing the City of Cheyenne as a software user participant in the Multi-Jurisdictional Licensing Agreement – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5824 between the City of Cheyenne, Solid Waste Division, and Tatooine Electronic Systems, Inc., for recycling of electronic waste received at the Felix Pino Transfer Station Waste Facility and Happy Jack Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (amount not to exceed \$160,000.00) (#5824)

[CA] Contract Modification No. 5 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayres Associates, to add additional construction Administration for the East Pershing Boulevard Reconstruction Project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds). Motion (per Consent Agenda) carried (amount not to exceed \$53,610.00). (#5496)

[CA] Contract Modification No.1 to Contract No. 6102 between the City of Cheyenne, Parks and Recreation Department, and Waterford Corporation, for the completion of the fencing at Pioneer Park Baseball Field (Park Project Funds). Motion (per Consent Agenda) carried (amount not to exceed \$7,000.00). (#6102)

[CA] Contract Modification No. 1 to Contract No. 5932 between the City of Cheyenne, Public Works Department, and Solid Waste Professionals of Wyoming, for Happy Jack Landfill Expansion and closure of existing cells (Solid Waste Management fund) – referred to Finance Committee.

[CA] Consideration of Bid #R-14-14 for furnishing three new 2014-2015 all wheel drive small sports utility vehicles for the Engineering Department (2011-2014 1% Sales Tax, Solid Waste Management Funds, Insurance Claims). Motion (per Consent Agenda) carried (accepted bid from

Castle Rock Dodge, Afton, Wyoming; amount not to exceed \$67,755.00).

[CA] Consideration of Bid #M-18-14 for a contract between the City of Cheyenne, 1% Construction Division, and S&S Builders, LLC for the FY 2014 Concrete for Street & Alley Project (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid; amount not to exceed \$974,805.30). (#6160)

[CA] Consideration of Bid #M-19-14 for a contract between the City of Cheyenne, 1% Construction Division, and STC Construction Co., Inc. for the Yellowstone Road Wear Course Project (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid; amount not to exceed \$569,137.40). (#6161)

[CA] Consideration of Bid #R-20-14 for an enterprise Ethernet Wide Area Network connection for the Information Technology Division to provide appropriate network bandwidth for the new phone system and to replace existing data connections (Special Distribution fund). Motion (per Consent Agenda) carried (accepted bid from CenturyLink, Casper, Wyoming; amount not to exceed \$369,103.90). (#6162)

[CA] Consideration of Bid #R-21-14 for furnishing ammunition for the Cheyenne Police Department – referred to Finance Committee.

[CA] Consideration of Bid #R-15-14 for furnishing three 2014-2015 solid waste transfer trailers for City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease) – referred to Finance Committee.

[CA] Consideration of Bid #R-16-14 for furnishing three new 2014-2015 cab and chassis units with automated refuse collection packer body with dual arm side loaders for the City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease) – referred to Finance Committee.

[CA] Consideration of Bid #M-17-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Reiman Corporation and Subsidiary of Cheyenne, Wyoming, for the Converse Softball Complex Project (State & Local Grants, Parks Facilities) – referred to Finance Committee.

[CA] Consideration of Bid #M-21-14 for a contract between the City of Cheyenne, Engineering Department, and Aztec Construction Company, Inc., of Cheyenne, Wyoming, for the Norris Detention Pond Project (1% Specific Purpose Sales & Use Tax) – referred to Finance Committee.

[CA] Consideration of Bid #R-23-14 for furnishing 15 new computers and operating systems for the City of Cheyenne Police Department (2011-2014 1% Sales Tax) – referred to Finance Committee.

[CA] Transfer of location for a microbrewery permit application for Freedom's Edge Brewing Co., LLC d/b/a Freedom's Edge Brewing Co., 1509 Pioneer Avenue, Cheyenne, Wyoming (license currently held by Freedom's Edge Brewing Co., LLC d/b/a Freedom's Edge Brewing Co., 301 W. 16<sup>th</sup> Street, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

[CA] Bar and grill liquor license application filed with the City Clerk's Office for WRCH-Cheyenne, Inc. d/b/a Wyoming's Rib and Chop House, 400 W. Lincolnway, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 14, 2014 Wyoming Association of Municipalities Business Meeting – referred to Finance Committee.

Announcement was made of the Appointment of Coltan G. Harrington to the Laramie County Community Juvenile Services Joint Powers Board, to be confirmed May 12, 2014. The following announcement was also made due to the item inadvertently being omitted from the agenda: Announcement of Appointment of Ronn J. Jeffrey as Judge of the Juvenile Court, to be confirmed May 12, 2014.

Under other business, request was made regarding Parks and Recreation staff services involving areas cleaned at Martin Luther King Park affiliated with recent use of the Park by members of the public with Mayor Kaysen advising a review by staff would be conducted.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:57 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle  
May 9, 2014